

Court No. - 41

Case :- WRIT - C No. - 11201 of 2016

Petitioner :- Manoj Singh

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Vatsala

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Learned counsel for the petitioner submits that no assessment order has been served on the petitioner pursuant to which the impugned recovery proceedings have been initiated.

Sri Mahboob Ahmad, learned counsel appearing for respondents-corporation submits that assessment order must have been passed.

Let the same be placed on record.

Put-up this case as a fresh case on 16th March, 2016.

By the said date Sri Mahboob Ahmad, Advocate, may produce the assessment order.

Order Date :- 10.3.2016

SS

Court No. - 3

Case :- WRIT - C No. - 11201 of 2016

Petitioner :- Manoj Singh

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Vatsala

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 02.02.2016 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-Corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in *Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)* from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.3,73,970/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 02.02.2016 issued by the respondent no. 2 is hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 30.3.2016

nd